

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.437 of 2010
(Ibraheem etc. versus The State etc.)

Criminal Miscellaneous Nos.3166-M, 3172-M of 2013
and Criminal Misc. No.2976-M of 2014 in
Criminal Appeal No.626 of 2010
(Muhammad Iqbal versus The State etc.)

and

Murder Reference No.106 of 2010
(The State versus Ibraheem etc.)

JUDGMENT

Date of hearing	17.06.2014
Appellant(s) by	Malik Saeed Hassan, Advocate assisted by Ms Iffat Saif, Advocate
State by	Ch. Muhammad Mustafa, Deputy Prosecutor General
Complainant by	M/s Shahzad Saleem Bhatti and Allah Rakha Saifee, Advocates

Syed Shahbaz Ali Rizvi, J. Ibraheem and Ifraheem (appellants) have filed Criminal Appeal No.437 of 2010 titled as “**Ibraheem etc. versus The State**” against their convictions and sentences awarded to them vide judgment dated 02.02.2010 passed by the learned Sessions Judge, Okara in case FIR No.485 dated 20.07.2002, under Sections 302, 381-A, 109 and 34 PPC registered at Police Station Haveli Lakha, District Okara whereby, both the appellants were convicted under Section 302(b) PPC and sentenced to death on two counts each. They were ordered to be hanged by neck till death. They were also ordered to pay Rs.1,00,000/- each, as compensation to the legal heirs of each deceased and in default thereof, to further undergo simple imprisonment for six months.

The learned trial court, however, acquitted Binyameen, Riaz Ahmad, Rafiq, Zafar, Muhammad Ashraf, Nazeer Ahmad and Manzoor Ahmad while giving them the benefit of doubt.

The complainant also filed Criminal Appeal No.626 of 2010 titled as “**Muhammad Iqbal versus The State etc.**” against the acquittal of above named accused persons which was dismissed by this Court vide order dated 12.12.2012 for non-prosecution. Thereafter, the complainant filed Crl. Misc. No.3166-M of 2013 for restoration of above said appeal which was accompanied by Crl. Misc. No.3172-M of 2013 for condonation of delay. The complainant also filed Crl. Misc. No.2976-M of 2014 for placing certain documents on record. The learned trial court also transmitted Murder Reference No.106 of 2010 titled as “**The State versus Ibraheem etc.**” for confirmation or otherwise of sentence of death awarded to Ibraheem and Ifraheem (appellants). All the above captioned matters shall be decided by this single judgment.

2. Brief facts of the case, as disclosed by Muhammad Iqbal, complainant (PW-1) in the FIR (Exh-PA), are that his brother Ashraf (deceased) had friendship with Muhammad Khan (deceased) and Muhammad Khan (deceased) was living with his brother at Mauza Painch. On 20.07.2002, his brother and Muhammad Khan (deceased) came at the Dera of Riaz Ahmad, accused (since acquitted) at Mauza Bilimar on motorcycle after attending court in Pakpattan Katchery to participate in a *Punchayat* where he (complainant) along with Imdad Hussain (given up PW) and Iftikhar Ahmad (PW-2) were also present in connection with said *Punchayat*. At about 11.00/12.00 noon, Ibraheem (appellant) armed with rifle, Ifraheem (appellant) armed with .12 bore gun and Manzoor Ahmad accused (since acquitted) armed with rifle came there on a motorcycle C.D.70. Ifraheem (appellant) raised *lalkara* that today Ashraf Bodla and Muhammad Khan should not be spared. Ibraheem (appellant) made a fire shot with rifle which landed on the right arm of Muhammad Khan (deceased), Ifraheem (appellant) made a fire shot with .12 bore gun which landed

on the right thigh of Muhammad Khan (deceased) who fell down. Then Manzoor Ahmad Wains accused (since acquitted) made a fire shot at Muhammad Ashraf (deceased) which landed on his right thigh near abdomen. Then Ibraheem (appellant) made fire shots which landed on the chest and neck of Muhammad Khan (deceased). He (complainant) along with his companions and other respectables, due to fear, went at some distance from the place of occurrence and witnessed the occurrence. His brother Ashraf and Muhammad Khan (deceased persons) fell on the ground when accused persons Ibraheem etc. while making firing and raising *lalkaras* fled away from the spot while riding the motorcycle CD-70 of Muhammad Khan (deceased). In their view, Muhammad Ashraf and Muhammad Khan succumbed to the injuries at the spot.

The motive behind the occurrence, as disclosed by the complainant in the FIR, is that a civil litigation between him (complainant) and Manzoor Ahmad, Muhammad Khan, Maqbool and Ibraheem and Ifraheem was pending in court and due to this grudge, Ibraheem, Ifraheem (appellants) and Manzoor Ahmad accused (since acquitted) have committed the murder of Ashraf and Muhammad Khan deceased persons on the abetment of Binyameen accused (since acquitted) and Muhammad Ahmad accused (since dead).

3. Ibraheem (appellant), who was in judicial lock up in some other case, was arrested in this case on 11.03.2006 by Noor Ahmad, S.I. (PW-7). On 16.03.2006, Ibraheem (appellant) while in police custody, after making disclosure, got recovered .222 bore rifle (P-4) which was taken into possession vide recovery memo Exh-PE. On 09.06.2004, Ifraheem (appellant), while in police custody, after making disclosure, got recovered .12 bore gun (P-5) which was taken into possession vide recovery memo Exh-PH. After completion of investigation, the challan was prepared and submitted before the learned trial court. The learned trial court, after observing legal formalities, as provided under the Code of Criminal Procedure, 1898 framed charge against the

appellants and their co-accused (since acquitted) on 30.04.2009, to which they pleaded not guilty and claimed trial.

4. In order to prove its case, the prosecution produced as many as seventeen witnesses, during the trial. Muhammad Iqbal, complainant (PW-1) and Iftikhar Ahmad (PW-2) furnished the ocular account of the prosecution. Shaukat Ali, ASI (PW-3) is the witness of recovery of .222 bore rifle (P-4) allegedly recovered at the instance of Ibraheem (appellant) whereas, Allah Ditta 258/C (PW-15) is the witness of recovery of .12 bore gun (P-5) allegedly recovered at the instance of Ifraheem (appellant).

The medical evidence was furnished by Dr. Sajid Rafique M.S. THQ, Hospital Haveli Lakha (PW-5), who conducted the postmortem examination on the dead body of Muhammad Ashraf (deceased) and found the following injuries on his body:-

1. A lacerated wound 4 x 2.5 cm on the front of right thigh, 7 cm below the inguinal region. Margins were inverted and burnt. It was entrance wound. Underline bone (femur) was partially fractured.
2. A lacerated wound 5 x 4 cm on the lower and inner quadrant of the right buttock closed to midline. Margins were everted and it was an exit wound. Major blood vessel at the site of injury No.1 were badly damaged.

OPINION

According to opinion of the doctor, cause of death of Muhammad Ashraf deceased was hypovolumic shock resulting from excess loss of blood as injury No.1 badly damaged major blood vessels. Both injuries were caused by single fire, injury No.1 being entrance wound and injury No.2 being exit wound. Both injuries were ante mortem and dangerous to life and sufficient to cause death in their natural course. Probable duration between injuries and death was about 5 to 10 minutes whereas, probable duration between death and postmortem examination was about 20-22 hours.

He also conducted postmortem examination on the dead body of Muhammad Khan deceased and found the following injuries on his person: -

1. A lacerated wound 1.5 x 1 cm on the inner side of right thigh. Margins were inverted. Underlying bone fractured (right femur) it was an entrance wound.
2. A lacerated wound 3 x 3 cm on the outer side of the right thigh opposite to injury No.1. It was an exit wound. Margins were everted.
3. A lacerated wound 3.5 x 1.5 cm on the front of the right forearm. Margins were inverted. It was an entrance wound.
4. A lacerated wound 2 x 1 cm on the front right forearm. Margins were inverted and it was an entrance wound.
5. A lacerated wound 7 x 4 cm on the back of the right forearm opposite to injury No.3 and 4. it was a common exit wound. Both radius in ulna were fractured.
6. A lacerated wound 2.5 x 1 cm on the left side of chin on its lower side, margin were inverted. It was an entrance wound.
7. A lacerated wound 4 x 3 cm on the right side of chin. Margins were everted. It was an exit wound. Lower jaw, right mandible and lower teeth on right side were fractured.

OPINION:

In his opinion, the cause of death was hypovolumic shock and aspiration pneumonia as there was excessive loss of blood from all injuries and fracture of right femur, right radius and ulna, right mandible, lower jaw and right lower teeth. He also swallowed blood and inhaled blood. All injuries were ante-mortem caused by firearm. All injuries were collectively dangerous to life and sufficient to cause death in their natural course. Probable duration between injuries and death was about within few minutes, about five minutes whereas, probable duration between death and postmortem examination was about 20-22 hours.

Noor Ahmad, S.I. (PW-7), Allah Ditta, Inspector (PW-13) and Maqbool Ahmad, S.I. (PW-14) were the Investigating Officers of this case. Abdul Rashid Javed, Draftsman (PW-12) prepared scaled site plan of the place of occurrence whereas, rest of the witnesses are formal in nature.

5. The prosecution gave up Imdad Hussain, Abdur Rashid SI, Muhammad Younis Butt DSP, Fiaz Ahmad 358/C, Muhammad Sarwar 502/C, Muhammad Akram 637/C, Zawar Hussain 725/C, Ghulam Haider 243/C, Mahmood Ahmad Inspector, Haq Nawaz Inspector, Sajwar Ahmad SI PWs being unnecessary and Muhammad Akram 494/C PW being dead whereas, Zawar Ahmad Khan SI, Muhammad Akram SI and Muhammad Hussain PWs being won over by the accused and closed the prosecution evidence after tendering reports of Chemical Examiner (Exh-PP & Exh-PQ) and that of Serologist (Exh-PR & Exh-PS) in evidence.

Zawar Ahmad, S.I. who appeared in the witness box as CW-1, also investigated this case.

6. The statements of the appellants and their co-accused (since acquitted), under Section 342 of the Code of Criminal Procedure, were recorded. They refuted the allegations levelled against them and professed their innocence. While answering to a question that “*Why this case against you and why the PWs deposed against you?*”, Ifraheem appellant replied as under:-

“It is a false case. All the PWs of this case are closely related with the complainant and also with the deceased persons. They have made false statement against me due to enmity and litigation. The eye witnesses namely Muhammad Iqbal, Iftikhar and Imdad Hussain were not present at the spot at the time of occurrence. The occurrence took place by the road side and not the Dera of Riaz and Rafiq accused. It was an un witnessed occurrence and a blind murder. The police informed the complainant party lateron about the murders of Ashraf and Muhammad Khan deceased in their village, who arrived very late in the night and thereafter a false story was evolved after making premeditation. Many persons who were inimical towards the deceased persons was suspected and thereafter the complainant decided to nominate me in this false case.

The deceased persons were hardened and desperate persons and many criminal cases were registered against them and as such they have large number of enemies in the area. The case was registered with in ordinate delay on the following night and as such the post mortem examination on the dead bodies were conducted on the

following days. The occurrence did not took place at 11/12 AM on 20.7.2002.”

Ibraheem (appellant), in reply to the said question, also replied on the same lines.

7. The appellants did not opt to give evidence on oath as provided under Section 340(2) of the Code of Criminal Procedure, in disproof of the allegations levelled against them, however, they produced Haji Muhammad Younas Butt S.P (DW-1), Muhammad Yar (DW-2) and Niaz Ahmad (DW-3) in their defence.

8. The learned trial court vide its judgment dated 02.02.2010, found the appellants guilty, convicted and sentenced them as mentioned and detailed above.

9. Learned counsel for the appellants contends that the FIR is not true as the delay in conducting the postmortem examination of the dead body reflects that the prosecution story was concocted after due deliberation and consultation and thereafter, FIR was recorded with ante-timing; that the prosecution witnesses could not justify their reason for being present at the place of occurrence; that the trial court has acquitted seven of the co-accused persons disbelieving the same evidence which has been believed to the extent of the appellants without any independent corroboration; that the private PWs are admittedly having the motive to falsely implicate the appellants because of the previous litigation between the parties; that the prosecution stance regarding the role attributed to both the appellants is self discrepant as well as inconsistent; that the prosecution witnesses have made dishonest improvements in their previous statements rather they kept on changing their stance after the registration of FIR till their statements before the learned trial court which is sufficient to discard their statements being untrustworthy; that the eyewitnesses were not only chance witnesses but also they are interested as well as inimical witnesses; that the prosecution has miserably failed to prove its case against both the appellants beyond

any reasonable doubt; that co-accused Manzoor Ahmad who was attributed with the sole injury on the person of Muhammad Ashraf (deceased) was acquitted of the charge and none of the appellants was attributed with the same injury but both of them have been convicted for the murder charge of said Muhammad Ashraf (deceased) as well. Further contends that medical evidence is discrepant with the ocular account and in this regard prosecution witnesses are pregnant with dishonest and flagrant improvements to bring the ocular account in line with the medical evidence which is sufficient to cast doubt about the veracity of the prosecution case; that recoveries of firearms at the instance of the appellants are also of no help to the prosecution as the same were effected after a long period. Learned counsel for the appellants vehemently argued that only a single doubt is sufficient to extend the benefit of doubt to the appellants what to speak of multiple reasonable doubts in the prosecution case. Lastly prays for acceptance of appeal and acquittal of both the appellants.

10. Conversely, learned Deputy Prosecutor General assisted by learned counsel for the complainant strongly opposes the arguments extended by learned counsel for the appellants and maintains that it is a day light occurrence which was reported to the police on the same day within two to three hours with a specific role attributed to both of the appellants; that the medical evidence is in line with the ocular account and similarly motive part of the occurrence is fully proved against both the appellants. Further maintains that both the appellants remained absconders for a considerable period as the occurrence took place on 20.07.2002 while Ifraheem (appellant), after remaining fugitive from law, was arrested on 27.05.2004 while Ibraheem (appellant) was arrested on 11.02.2006 which is sufficient to corroborate the ocular account against them and in view of the available evidence against both the appellants, it can safely be inferred that the prosecution remained successful to prove its case against the appellants beyond any reasonable doubt and that the judgment passed

by the learned trial court against both the appellants is well reasoned judgment and does not require any interference by this Court.

11. We have heard the arguments of learned counsel for the appellants, learned Deputy Prosecutor General assisted by learned counsel for the complainant and also gone through the record with their able assistance.

12. We have noticed that it is a case of murder of two persons in the same occurrence which was reported by the complainant within a period of two to three hours while the police station was situated at a distance of nine kilometers but when reporting of the incident with the abovementioned span is considered keeping in view the duration between the occurrence and the postmortem examination on the dead bodies which was done by the Medical Officer (PW-5) Dr. Sajid Rafique on the next day i.e. on 21.07.2002 at 08.30 a.m and at 09.00 a.m, we feel the necessity of scrutinizing the prosecution evidence especially the ocular account with extra caution and care.

It is the case which mainly hinges upon the ocular account of the occurrence extended by the prosecution through PW-1 Muhammad Iqbal, complainant and PW-2 Iftikhar Ahmed. It is important to mention here that both the witnesses are closely related to Muhammad Ashraf (deceased) and as admitted by PW-2 Iftikhar Ahmed in the beginning of his cross examination which is reproduced as under: -

“It is correct that there was prolong civil and criminal litigation between the accused party and complainant party and as such we were inimical to each other...”

Similarly, both the eyewitnesses during their cross examination frankly admitted their relationship with the deceased and their residences situated at a considerable distance not less than 15/16 kilometers from the place of occurrence and all these aspects further require extraordinary strict appraisal of the evidence given by both the witnesses.

First of all we would like to scrutinize the evidentiary value of evidence given by PW-1 Muhammad Iqbal, complainant. According to the FIR, which was admittedly recorded on his statement, Ibraheem (appellant) was armed with rifle and he made fire which hit on the right arm of Muhammad Khan (deceased) and he again made fires which hit Muhammad Khan (deceased) on the chest and neck. When the complainant filed a private complaint (Exh-DM) after a period of one year and 3½ months, he changed his stance regarding the role of Ibraheem (appellant) and maintained that Ibraheem (appellant) made a fire with his rifle, which hit on the right arm and then Ibraheem (appellant) and Binyameen accused (since acquitted) made fires at Muhammad Khan (deceased) which hit him on neck and face. Similarly, Imdad Hussain (given up PW), brother of Muhammad Khan (deceased) also filed a private complaint (Exh-DQ) on 13.05.2003 i.e. with the delay of about ten months by attributing a role of burst firing to Ibraheem (appellant) which landed on the right arm of Muhammad Khan (deceased) while he attributed the injury reflected in the postmortem report on the chin of deceased Muhammad Khan to Binyamin co-accused (since acquitted). Muhammad Iqbal, complainant (PW-1) when appeared before the learned trial court in the present case, he further changed his stance regarding the crime weapons allegedly held and used by both the appellants and stated that Ibraheem (appellant) was armed with .12 bore gun while Ibraheem (appellant) was armed with rifle and regarding the role of Ibraheem (appellant), he maintained that Ibraheem made first fire which hit Muhammad Khan (deceased) on the right arm and then Ibraheem (appellant) fired and so many fires hit Muhammad Khan (deceased) on his chin, neck and face. The perusal of postmortem report of deceased Muhammad Ashraf (Exh-PG) reflects that there was only one firearm injury on the right thigh which was attributed to Manzoor Ahmad co-accused who was acquitted by the learned trial court while the postmortem report (Exh-PH) of Muhammad Khan (deceased) reflects the injuries were available one on the right thigh while two entry wounds on the right forearm and

only entry wound on the left side of chin of Muhammad Khan (deceased) having its exit on the right side of chin and admittedly, there was no injury on the neck and chest of Muhammad Khan (deceased). Both the prosecution witnesses kept on changing rather improving their stance to bring their statements in line with the medical evidence. Even in their statements before the learned trial court when they appeared as PW-1 & PW-2, both of them are discrepant regarding the crime weapons of both Ibraheem and Ifraheem (appellants) and their roles as Muhammad Iqbal (PW-1) has stated that Ibraheem (appellant) was armed with .12 bore gun at the time of occurrence and he made fire with his gun on the person of Muhammad Khan (deceased) while Iftikhar Ahmad (PW-2) in his examination-in-chief has stated that Ibraheem accused made a burst fire with his rifle which hit on the face of Muhammad Khan deceased while regarding Ifraheem PW-1 Muhammad Iqbal alleged the use of rifle by him at the time of occurrence while PW-2 Iftikhar Ahmed alleged the use of .12 bore gun by him which shows that both the witnesses are discrepant inter se on the material aspects of the case besides dishonest improvements in their statements. Similarly, both the eyewitnesses after the registration of the FIR and statements under Section 161 of the Code of Criminal Procedure recorded by the police kept on implicating other accused persons, including the natural and impartial witnesses of occurrence being residents of the place of occurrence who were not ready to support the false prosecution story, who stand acquitted by the learned trial court through the same impugned judgment and in this eventuality such like witnesses can never be trustworthy and evidence of such like witnesses cannot be made basis of convicting the accused in a case of capital punishment.

The learned trial court has disbelieved both the witnesses to the extent of accused persons namely, Manzoor Ahmad, Binyameen, Riaz Ahmad, Rafique, Zafar, Muhammad Ashraf and Nazeer Ahmad and in these circumstances, the conviction of the appellants Ibraheem and Ifraheem on the basis of same evidence without independent strong

corroboration would not be safe by any stretch of law. Similarly, as discussed above, both the witnesses have made dishonest improvements in their statements and in such like situation, when a witness has improved his statement dishonestly, his creditability becomes doubtful on the well known principle of criminal jurisprudence that improvements once found deliberate and dishonest cast serious doubt on the veracity of such witness. See Hadi Bakhsh's case PLD 1963 Karachi 805. Reference can be made to the cases of Ibrar Hussain and others versus The State and another (2007 SCMR 605), Farman Ahmed versus Muhammad Inayat and others (2007 SCMR 1825) and Akhtar Ali and others versus The State (2008 SCMR 6).

13. Both the eyewitnesses are admittedly residents of places distant from the place of incident and being chance witnesses were bound to give plausible explanation for being present at the spot but we have observed that both PW-1, the complainant and Iftikhar Ahmad (PW-2) remained fail to prove their stance regarding the *Punchayat* at the DERA of Muhammad Riaz, co-accused (since acquitted). No independent evidence has been produced, even the copy of FIR, which allegedly was the agenda of *Punchayat*, or any other document in this respect has not been tendered in evidence by the prosecution. The noticeable delay of 22-24 hours in postmortem examination on the dead bodies of both the deceased persons without explanation is another strong circumstance sufficient to create suspicion about the registration of FIR at 02.00 p.m. and the presence of the witnesses at the scene of occurrence. It is held by the Hon'ble courts that such unexplained delay is normally occasioned due to incomplete police papers necessary to be handed over to the Medical Officer to conduct the postmortem examination of the deceased which happens only when the complainant and police are busy in consultation and preliminary inquiry regarding the culprits in such cases of un-witnessed occurrence. Hence, we are of the view that the presence of the witnesses at the scene of occurrence at the relevant time is

doubtful. In this regard, reliance is placed on the case of “Muhammad Riaz versus The State” (2009 P. Cr. LJ 1022 Lahore) wherein, this Court has observed as under: -

“13. ...It is also not found correct that the F.I.R. had been got registered with promptitude as the occurrence had allegedly taken place at about 5-00 a.m. while the post-mortem examination was conducted at 1-00 p.m. and there is every possibility that the intervening period was consumed in concocting a story and to await for the relatives of the deceased, who were made witnesses subsequently, otherwise, they have failed to establish their presence at the spot...”

Same view was affirmed by the Hon’ble Supreme Court of Pakistan in the case of Irshad Ahmed versus The State (2011 SCMR 1190), wherein the Hon’ble Supreme Court was pleased to observe as under:-

“3. ...We have further observed that the post-mortem examination of the deadbody of Shehzad Ahmed deceased had been conducted with a noticeable delay and such delay is generally suggestive of a real possibility that time had been consumed by the police in procuring and planting eye-witnesses and in cooking up a story for the prosecution before preparing police papers necessary for getting a post-mortem examination of the deadbody conducted...”

14. The ocular account is also discrepant with the medical evidence and dishonest improvements have been made by the eyewitnesses in their statements to bring the same in line with the medical evidence. According to the scaled site plan (Exh-PG) and statement of Abdul Rashid Javed, Draftsman (PW-12), the distance between the accused and Muhammad Ashraf (deceased) was 28 feet but the entry wound available on the person of Muhammad Ashraf (deceased) is having burnt margins. Similarly, according to the FIR, Ibraheem (appellant) was attributed with the injuries on the chest and neck of deceased Muhammad Ashraf but postmortem report (Exh-PH) reflects that there was no injury on the chest and neck of the deceased and both the witnesses during the subsequent statements have made deliberate improvements as discussed above. Even otherwise, the medical evidence is meant to reflect the nature of injury and the kind of weapon used besides the duration of injuries available on the

person/examinee but it cannot identify the faces of the culprits. Reliance is placed on the cases of Muhammad Tasaweer versus Hafiz Zulkarnain and 2 others (PLD 2009 SC 53) and Mursal Kazmi alias Qamar Shah and another versus The State (2009 SCMR 1410).

15. So far as the recoveries of .222 rifle on the pointation of Ibraheem (appellant) and .12 bore gun on the pointation of Ifraheem (appellant) through Exh-PE and Exh-PH, respectively are concerned, we have noticed that no crime empty was taken into possession from the place of occurrence and no report of the Forensic Science Laboratory regarding the comparison of crime weapon and even regarding being in working order of said weapons is available on file so, the evidence of recoveries is of no consequence to the prosecution case. Even otherwise, the recovery from Ibraheem and Ifraheem appellants is not believable as it is effected after the delay of about a little less than four years and about more than two years respectively which is otherwise unbelievable because it cannot be expected that the accused persons would have kept the weapons, for such a long period, to be recovered on their pointation by the Investigating Officer to strengthen the case against them.

16. As far as evidence of abscondance of the appellants is concerned, the abscondance of both the appellants is not put to them during their statement recorded under Section 342 of the Code of Criminal Procedure, therefore, the same cannot be used against them.

17. Insofar as the motive is concerned, we have noted that motive is always considered a double edged weapon. If it can be a reason for commission of the occurrence, the same can also be a reason for false implication. Furthermore, we have disbelieved the ocular account of the prosecution, therefore, the motive, in the circumstances, is not of much importance.

18. In this view of the matter, we have come to irresistible and unavoidable conclusion that the prosecution could not prove its case against the appellants beyond shadow of reasonable doubt. It is, by

now, established principle of law that it is the prosecution, which has to prove its case against the accused by standing on its own legs and it cannot take any benefit from the weaknesses of the case of the defence. In the instant case, the prosecution remained fail to discharge its responsibility of proving the case against the appellants. In such like situation when there are reasonable doubts in the prosecution case, the benefit of the same is to be extended to the appellants as a matter of right as is held by the Hon'ble Supreme Court of Pakistan in the case of Tariq Pervez versus The State (1995 SCMR 1345) wherein, the Hon'ble Supreme Court of Pakistan was pleased to observe as under: -

“4. ... The concept of benefit of doubt to an accused person is deep-rooted in our country. For giving him benefit of doubt, it is not necessary that there should be many circumstances creating doubts. If there is a circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused will be entitled to the benefit not as a matter of grace and concession but as a matter of right.”

Same view was reiterated by the Hon'ble Supreme Court of Pakistan in the case of Muhammad Akram versus The State (2009 SCMR 230).

19. For what has been discussed above, by extending benefit of doubt to the appellants Ibraheem and Ifraheem, this appeal (**Crl. Appeal No.437 of 2010**) is allowed, the convictions and sentences awarded to the appellants by the learned trial court vide its judgment dated 02.02.2010 are set aside and they are acquitted of the charge under Sections 302(b) PPC. They are in custody, be released forthwith if not required to be detained in any other case.

20. So far as Crl. Misc. No. 3172-M of 2013, application for condonation of delay in filing Crl. Misc. No.3166-M of 2013 for restoration of Crl. Appeal No.626 of 2010 is concerned, we have noted that no plausible reason for condonation of delay is mentioned in the application. Furthermore, we have allowed Crl. Appeal No.437 of 2010 filed by Ibraheem and Ifraheem (convicts) and acquitted them of the charge, so, there is no need to restore Crl. Appeal No.626 of

2010 filed by the petitioner against the acquittal of co-accused of said convicts, therefore, Crl. Misc. No.3172-M of 2013 is hereby dismissed. Resultantly, Crl. Misc. No.3166-M of 2013 is also dismissed being barred by time.

As far as Crl. Misc. No.2976-M of 2014, application for placing the certain documents on the file is concerned, in view of the reasons given by us in the preceding paragraph, the same has become infructuous and disposed of as such.

21. **Murder Reference No.106 of 2010** is answered in the **NEGATIVE** and the sentence of death of Ibraheem and Ifraheem (convicts) is **NOT CONFIRMED**.

(Abdul Sami Khan)
Judge

(Syed Shahbaz Ali Rizvi)
Judge

Javaid

APPROVED FOR REPORTING

Judge

Judge